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STATUS CONFERENCE, TRIAL SETTING CONFERENCE, AND ORDER TO SHOW CAUSE RE COMPLIANCE WITH FIVE-YEAR RULE

MOVING PARTY: Noel Fisher and Detail Music, LLC (collectively, Defendants)

RESPONDING PARTY: Jane Doe (Plaintiff)

NOTICE: OK

RELIEF REQUESTED: Defendants request that the Court continue the stay of this action through completion of the related criminal trial. Plaintiff requests that the Court discharge the OSC, permit discovery to proceed, and set this action for trial.

RULING: The OSC re 5-Year Dismissal is discharged. Defendants' request to stay the entire action through completion of the criminal trial is denied without prejudice. The stay is modified through September 3, 2026, as stated below. The Status Conference and Trial Setting Conference are continued to September 3, 2026.

BACKGROUND

On September 11, 2020, Plaintiff filed the Complaint against Defendants asserting causes of action for assault, battery, sexual assault, sexual battery, false imprisonment, intentional infliction of emotional distress, negligent infliction of emotional distress, gender violence, and violation of the Ralph Act.

On November 1, 2023, the Court struck Defendants' Answer and entered their defaults. On February 13, 2024, Plaintiff filed her default judgment package. On February 15, 2024, the Court entered default judgment against Defendants. On March 4, 2025, the Court vacated the defaults and default judgment and reinstated Defendants' Answer.

On December 8, 2025, Defendants filed a motion to stay this action pending resolution of a related criminal proceeding against Fisher.

On January 6, 2026, the Court denied Plaintiff's motion for summary judgment, granted defense counsel's motion to be relieved, and vacated the Final Status Conference and February 9, 2026 trial date. The Court found that proceeding to trial was impracticable due to the withdrawal of defense counsel and Detail Music, LLC's inability to appear without counsel. The Court ordered that the time between January 6, 2026 and the new trial date be excluded from the five-year dismissal computation. (Jan. 6, 2026 Minute Order at p. 12.)

On February 13, 2026, Thomas D. Sands substituted in as counsel for Defendants.

On March 19, 2026, the Court granted Defendants' motion to stay in part and stayed this action through May 3, 2026. The Court also discharged the then-pending OSC regarding the five-year rule.

On May 7, 2026, the Court extended the stay through June 30, 2026 and set an OSC regarding compliance with the five-year rule, a Status Conference, and a Trial Setting Conference for July 15, 2026. The Court ordered the parties to submit written responses supported by competent evidence addressing the five-year calculation and any request for further stay relief.

On July 6, 2026, Plaintiff filed a Status Conference Brief and the Declaration of Alan Kossoff. Defendants filed a Status Conference Brief, a response to the OSC, and declarations from Andrew Flier, Fisher, and Sands. On July 15, 2026, the Court continued the matters to August 6, 2026. On July 31, 2026, the parties filed supplemental status conference briefs.

DISCUSSION

OSC re 5-Year Rule

An action must be brought to trial within five years after it is commenced against the defendant. (Code Civ. Proc., § 583.310.) The parties may extend that time by written stipulation or by an oral agreement made in open court and entered in the minutes or reflected in a transcript. (Code Civ. Proc., § 583.330, subds. (a), (b).) The Court must exclude any period during which its jurisdiction to try the action was suspended, prosecution or trial was stayed or enjoined, or bringing the action to trial was impossible, impracticable, or futile. (Code Civ. Proc., § 583.340, subds. (a)-(c).) If the action is not brought to trial within the prescribed time, dismissal is mandatory. (Code Civ. Proc., § 583.360.)

"[T]he time between entry of a default and entry of a default judgment should be excluded from the five-year time to bring a case to trial if and only if the court finds that the plaintiff used due diligence to obtain entry of the judgment, and that in spite of such due diligence, it was impossible, impracticable, or futile to obtain a judgment." (Hughes v. Kimble (1992) 5 Cal.App.4th 59, 71.) "[T]he impossibility exception obviously and necessarily applies where a plaintiff obtained a default judgment, but the judgment was later vacated." (Id. at p. 68.) "Such time thus clearly must be excluded from the computation of time remaining after vacation of the judgment to bring the case to trial." (Ibid.)

Here, Plaintiff filed this action on September 11, 2020. The initial five-year deadline was September 11, 2025.

After Defendants failed to appear at a Mandatory Settlement Conference and OSC re sanctions and filed no responsive declarations, the Court struck Defendants' Answer and entered their defaults on November 1, 2023. The Court set a Default Judgment Status Conference for February 28, 2024 and ordered Plaintiff to submit a default judgment package, including the proposed judgment, declarations, and supporting evidence, at least five days before the conference. Plaintiff filed the completed package on February 13, 2024, before the court-ordered deadline. The Court entered judgment two days later.

The Court finds that Plaintiff exercised due diligence by complying with the procedure and deadline established by the Court and that obtaining judgment before completion of that process was impracticable despite Plaintiff's diligence. The Court excludes the 106-day period between November 1, 2023 and February 15, 2024. (Code Civ. Proc., § 583.340, subd. (c); Hughes, supra, 5 Cal.App.4th at p. 71.)

The default judgment remained in effect from February 15, 2024 through March 4, 2025. Bringing the action to trial was impossible while the default judgment remained in effect. The Court excludes that 383-day period as well. (Code Civ. Proc., § 583.340, subd. (c); Hughes, supra, 5 Cal.App.4th at p. 68.)

On January 6, 2026, the Court vacated the trial date, found that proceeding to trial was impracticable, and ordered the time excluded until a new trial date. No new trial date was set. The Court subsequently entered limited stays and set or continued conferences to determine whether the action was ready for trial. The Court continued the July 15 Trial Setting Conference on its own motion to August 6, 2026. Because the trial date remained vacated and selection of a new trial date remained before the Court, bringing the action to trial was impracticable throughout this period. The Court excludes the 212-day period from January 6 through August 6, 2026 under section 583.340, subdivision (c).

The Court continues the Status Conference and Trial Setting Conference to September 3, 2026 to obtain the result of the August 14 criminal trial-setting conference. Because no civil trial date has been restored and the Court is awaiting the criminal trial schedule before setting one, bringing this action to trial remains impracticable through September 3, 2026. The Court excludes the additional 28-day period from August 6 through September 3, 2026 under section 583.340, subdivision (c). Together with the 212-day period discussed above, the exclusion beginning January 6, 2026 totals 240 days. The Court makes no finding at this time regarding exclusion of any period after September 3, 2026.

The excluded periods total 729 days. Adding 729 days to the original September 11, 2025 deadline establishes a deadline of September 10, 2027. The deadline has not expired. The OSC is therefore discharged.

Stay

Trial courts have inherent authority to stay proceedings in the interests of justice and to promote judicial efficiency. (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489.) In determining whether to stay civil proceedings during a parallel criminal prosecution, the Court considers the extent to which the defendant's Fifth Amendment rights are implicated, the prejudice caused by delay, the burden on the defendant, judicial efficiency, nonparty interests, and the public interest. (Avant! Corp. v. Superior Court (2000) 79 Cal.App.4th 876, 885.) "Where . . . a defendant's silence is constitutionally guaranteed, the court should weigh the parties' competing interests with a view toward accommodating the interests of both parties, if possible." (Pacers, Inc. v. Superior Court (1984) 162 Cal.App.3d 686, 690.)

Here, Counts 1 and 2 in the criminal action arise from the same alleged incident underlying this action. Those counts remain pending after denial of Fisher's Penal Code section 995 motion. Fisher's criminal counsel has advised him to invoke the Fifth Amendment if required to provide testimony or verified discovery concerning that incident. (Flier Decl. ¶¶ 2, 5-7.) Fisher's privilege is directly implicated by merits discovery directed to him.

The criminal court has set a pretrial and trial-setting conference for August 14, 2026. Flier states that the parties and criminal court agreed to an October 2026 trial setting, but the precise trial date remains to be confirmed and managed through the criminal court's calendar. He expects the criminal trial to last approximately three to four months. (Flier Decl. ¶¶ 3-4.) These circumstances support continuing a limited stay as to Fisher until the criminal trial schedule is known. They do not presently establish a sufficiently definite endpoint for staying the entire action through completion of the criminal trial.

The Complaint alleges that Fisher is Detail Music's registered agent, conducts his music business through the LLC, and is a member of the LLC. (Compl. ¶¶ 8, 15.) The record does not establish that Fisher is Detail Music's sole member, sole manager, or only available corporate representative. Even if Fisher is Detail Music's sole owner, the LLC has no Fifth Amendment privilege. (People v. Appellate Division of Superior Court (World Wide Rush, LLC) (2011) 197 Cal.App.4th 985,

991.) Detail Music must “appoint an agent who could, without fear of self-incrimination, furnish such requested information as was available to the corporation.” (Avant!, supra, 79 Cal.App.4th at p. 884.) Written discovery and document production directed to Detail Music may therefore proceed, subject to otherwise applicable objections.

Fisher’s personal Fifth Amendment rights remain implicated by testimony concerning the alleged incident. Designating Fisher as Detail Music’s corporate representative would not eliminate those concerns. The stay therefore remains in effect as to Fisher’s deposition in either his individual capacity or as Detail Music’s designated representative. Detail Music may designate and produce another representative. (Avant!, supra, 79 Cal.App.4th at pp. 886-888.) Third-party discovery may also proceed.

The stay is modified as follows: Fisher’s deposition and discovery directed personally to Fisher concerning the alleged incident are stayed through September 3, 2026. This restriction applies whether Fisher is noticed individually or designated as Detail Music’s corporate representative. Written discovery and document production directed to Detail Music, the deposition of a corporate representative other than Fisher, and third-party discovery may proceed, subject to otherwise applicable objections.

The Status Conference and Trial Setting Conference are continued to September 3, 2026. At that time, the Court will consider whether the result of the August 14 criminal trial-setting conference warrants staying further civil proceedings through completion of the criminal trial.

CONCLUSION

The OSC regarding compliance with Code of Civil Procedure sections 583.310 through 583.360 is discharged. The current five-year deadline is September 10, 2027.

Defendants’ request to stay the entire action through completion of the criminal trial is denied without prejudice. The limited stay stated above remains effective through September 3, 2026.

On the Court’s own motion, the Status Conference and Trial Setting Conference scheduled for August 6, 2026 are continued to September 3, 2026, at 8:30 a.m. in Department F46 at Chatsworth Courthouse.